

M.P. Ladli Laxmi (Balika Protsahan) Adhiniyam, 2018

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State of Madhya Pradesh - Act

M.P. Ladli Laxmi (Balika Protsahan) Adhiniyam, 2018

MADHYA PRADESH

India

M.P. Ladli Laxmi (Balika Protsahan) Adhiniyam, 2018

Act 29 of 2018

Published on 31 August 2018

Commenced on 31 August 2018

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M.P. Ladli Laxmi (Balika Protsahan) Adhiniyam, 2018

(M.P. Act

No. 29 of 2018

)

Received the assent of the Governor on the 16.7.2018; assent first published in the "Madhya Pradesh Gazette (Extraordinary), dated 31.8.2018.

An Act to provide for special rights to female children so as to enable them to realize their potential, create a social environment in which parents and society cherish female child and for matters connected therewith and incidental thereto.

Be it enacted by the Madhya Pradesh Legislature in the sixty-ninth year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)
This Act may be called the Madhya Pradesh Ladli Laxmi (Balika Protsahan) Adhiniyam, 2018.

(2)
It extends to the whole of the State of Madhya Pradesh.

(3)
It shall come into force on such date as the State Government may, by notification, appoint.

2.
Definitions.

- In this Act, unless the context otherwise requires,-

(a)
"beneficiary" means the female child who is registered and is eligible for benefits under the Scheme;

(b)
"certificate of assurance" means the certificate issued to authenticate and assure the benefit in favour of the beneficiary;

(c)
"competent authority" means an officer authorised by the Collector to grant sanction of the benefits under the Scheme;

(d)
"family planning" means tubectomy operation in case of the mother and vasectomy operation in case of the father of the female child or other prescribed measures;

(e)
"female child" means a female child who is eligible to get the benefits under section 5;

(f)
"Fund" means the fund setup under section 6;

(g)
"Government" means the Government of Madhya Pradesh;

(h)
"Ladli Laxmi Yojna" means the Scheme running in the State with effect from 1st April, 2007 by the administrative order;

(i)
"Parents" means the natural parents of the female child or in case of adopted daughter, her adoptive parents, and if no parent is alive the legal guardian or in case of orphan, the superintendent of orphanage or child care institution where the female child is admitted;

(j)
"registration centre" means a centre established for the registration of the beneficiaries;

(k)
"Scheme" means the provisions of providing pecuniary and other benefits, if any, under this Act and the rules made thereunder.

3.
Conditions precedent for registration.

- A female child shall be entitled to registration under the Scheme if;

(i)
the present are bona fide residents of Madhya Pradesh and are not income tax payee, in case the parents have become income tax payee after the registration, the female child shall continue to get the benefits under the Scheme;

(ii)
the parents have adopted family planning after second surviving child;

(iii)
she is enrolled in the Aanganwadi centre; and

(iv)
She fulfils any other condition that may be prescribed.

4.
Registration and verification of beneficiaries.

(1)

The parent shall submit application for registration in such manner as may be prescribed at the registration centre within a year of birth or adoption or succession of successor female child.

(2)

The officer in-charge of registration centre shall on receipt of the application, verify the contents therein and shall forward the same to the competent authority.

(3)

The competent authority shall after receiving the application from the officer in-charge under sub-section (2) above, either register and issue assurance certificate or reject the application.

5.

Benefits.

(1)

The beneficiary shall be entitled to a sum of one lac eighteen thousand rupees under sub-sections (2) and (3), as per the certificate of assurance issued under section 4.

(2)

The beneficiary shall be entitled to receive the following sums from time to time, as below:-

(i)

At the time of admission to class 6th

-

Rs. 2000

(ii)

At the time of admission to class 9th

-

Rs. 4000

(iii)

At the time of admission to class 11th

-

Rs. 6000

(iv)

At the time of admission to class 12th

-

Rs. 6000

(3)

The beneficiary shall be paid an amount of one lac rupees on attaining the age of 21 years provided she fulfils the conditions as prescribed.

6.

Constitution of Madhya Pradesh Ladli Laxmi Yojna Nidhi.

(1)

The State Government shall constitute and maintain a Fund known as Madhya Pradesh Ladli Laxmi Yojna Nidhi which shall be utilized for disbursing pecuniary benefits to the beneficiary in such manner as may be prescribed.

(2)

A sum of thirty thousand rupees shall be deposited by the State Government in the Fund for each beneficiary after the registration.

7.

Power to issue directions.

- The State Government shall have powers to issue directions for carrying out the provisions of this Act and the rules made thereunder.

8.

Disputes resolution.

- Any dispute arising shall be referred to the Collector whose decision shall be final.

9.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

10.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the State Government may, within two years of the commencement of this Act, by general or special order, published in the Official Gazette, not inconsistent with the provisions of this Act, remove the difficulty.

11.

Saving.

- All female children registered under the Madhya Pradesh Ladli Laxmi Yojna of the State prevailing as on the date of commencement of this Act shall be deemed to have been registered under this Act and shall be entitled to the benefit under the Scheme.

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